

Celebrating 20 Years of ‘Dealing in Virtue’

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In 1996, Yves Dezalay and Bryant Garth published the book *Dealing in Virtue: International Commercial Arbitration and the Construction of a Transnational Legal Order*.¹ It still is one of the most cited, most influential books on international arbitration, one of the most popular ones in the field. Whether you score on academic craftsmanship or on practical relevance, it really rates, sure enough. But it would probably have been a hit anyway, right from the get go. It is, after all, a book that tells us, all of us who deal in arbitration that what we do is deal in virtue. We do it in different ways, we do it more or less well, but at bottom it is virtue we deal in. Consider how a book on investment bankers would do if it had the same title—that is, how it would do among people in the banking industry. Thanks in no small part to Dezalay and Garth, we tend to associate being an arbitrator with virtue. Dezalay and Garth made arbitration sexy (I know, the sort of sexiness that involves virtue and mostly old men and a few old women, but you get the point). Yet things could have gone very differently.

Twenty years ago, Dezalay and Garth wrote that ‘International arbitration is an arcane domain, the subject to date of a literature produced mainly by insiders with their own particular understandings.’² This has not changed all that much. Today one might say that it is ‘the subject to date of a literature produced mainly by insiders with their own particular agenda.’ To some extent, this is inevitable. Notice that tax lawyers do not have to sell the idea of taxes, contract lawyers the idea of contracts, constitutional lawyers the importance of the constitution. That is because taxes, the use of contracts, deference to the constitution are the default setting. The protection of the environment is less obvious, it needs more selling. But there is someone else than lawyers who can do, and usually do, most of the advocacy to protect the environment. The English institution of trusts can probably be put in the same category. How about respect for international law? It just might be an even less obvious idea, less of a default setting, a matter that requires even more advocacy. (Watch the movie *Eye in The Sky* to get an idea.) This just might explain the obsession of international lawyers with international law’s bindingness and effectiveness and legitimacy, with the idea that more international law, for instance, more international human rights, is just better than less. More international law would make the world a

1 Yves Dezalay and Bryant Garth, *Dealing in Virtue: International Commercial Arbitration and the Construction of a Transnational Legal Order* (Chicago University Press 2016).

2 *ibid* 4.

better place, the thinking goes, so international lawyers have to advocate their field, have to extol the virtues of international law. And now to arbitration: it is even further down than continuum, further away from the default setting, the default idea. Within arbitration, investment arbitration is yet one step further, it requires yet more selling. (Recall that businesses seem not to care very much about it, at least if you ask the general counsel of large American companies investing abroad.³ Of course perhaps they simply didn't get it yet and need to be educated. Or perhaps they are in fact sophisticated customers.) So it is quite normal that part of the literature on arbitration plainly pursues the agenda of promoting arbitration. Tax lawyers would probably do the same if the idea of taxes were seriously challenged. Dezalay and Garth, unwittingly, helped the arbitration industry do just that.

Now imagine you want to write a book on what the point is of academic research in law. One way you could do this would be to use Weberian ideal types of academics, in the part of the book that would describe what it is we academic lawyers actually do. At this stage, you would have a few successive choices. From mostly every phenomenologist since Edmund Husserl and many philosophers of science since at least Karl Popper, we know that few if any accounts of reality are full and perfect representations of it. We choose to account for certain aspects of reality when we give an account of a phenomenon. Ideal types provide an account of reality that fully embraces this idea of limitations in the representation. So we have a choice: Where we we want to set the limitations? What do we want to show, to reveal about the world? The bright sides or the dark sides (to put it somewhat simply)? By choosing which ideal types of academics you are going to use in the book, you can present what it is we academic lawyers actually do in a way that will make everyone hate you (try 'the Arrogant Egghead', 'the Self-Promoter', 'the Backstabber' and 'the Mafioso') or in a way that will make everyone cherish and laud you (try 'the Intellectual', 'the Communicator', 'the Clever Navigator of Social Forces' and 'Those Who Look After Their Own'). Ideal types of people are simply very easily, perhaps unavoidably, strongly valueladen.

The ideal types of arbitrators in Dezalay and Garth's book—recall: the Grand Old Men and the Technocrats—are also valueladen, and very strongly so. They are very positive images, or representations, of arbitrators. When I did my PhD we loved the book: going into this field, who would not want to be on the track of possibly becoming, eventually, a Grand Old Man? (Unless you are a woman of course, but that is another problem.) And if we could not make it to being a Grand Old Man, surely with much work we could become the next best thing, a Technocrat—not everyone can be Great, but everyone can learn the technique if one tries hard enough, we thought. But these ideal types could also have been (and could still possibly be) very different. Anachronisms aside, Dezalay and Garth could have chosen the ideal types of Frank Underwood and Claire Underwood in *House of Cards*, or Cyrus Beene in *Scandal*, or Leo di Caprio in *Catch Me If You Can*, or Kim Kardashian (famous for being famous), or the ideal type of the Ambulance Chaser (ready to do anything) or the Zealots of Arbitration (who really profoundly believe

3 Jason W Yackee, 'Do Bilateral Investment Treaties Promote Foreign Direct Investment? Some Hints from Alternative Evidence' (2011) 51 *Virg JIL* 397.

that arbitration is an unqualified good, just like, say, austerity measures are good, in spite of the evidence, because it becomes a moral stance instead of an analysis of pros and cons). But certainly the fact that this is not the choice Dezalay and Garth made contributed to the appeal and popularity of the book. If someone wrote a book using the less palatable ideal types, the book would most likely simply not be received into the literature. This might be one reason why arbitration is still a fairly 'arcane domain' 20 years down the line.

Beyond the possible entertainment of my showbiz references, this may actually translate into questions of research design. If the explicit starting point of an investigation into arbitration and arbitrators is, as Dezalay and Garth put it, that 'international lawyers must constantly evaluate the stature and authority of potential arbitrators'⁴ (notice: the *stature* and *authority*) and the 'recognition they receive from a group' (or, in the jargon, their symbolic capital), does this not imply that the parties are looking for *great* arbitrators, because they want a *good* decision, because they are looking for *justice*? Now is it so? Is it not rather so that the parties essentially want to win? If so, does this not imply primarily two things, namely predictability in decision-making and influence on the other arbitrators? If predictability is indeed part of it, then someone famous most likely offers more chances of predicting what he or she is going to say. You know what decisions Kim Kardashian is going to make. If influence on the other arbitrators is indeed part of it, as a recent paper by Todd Tucker suggests,⁵ then stature and authority are only partly related to this. I would definitely trust Cyrus Beene, for instance, to have quite an influence on his colleagues.

4 Dezalay and Garth (n 1) 18.

5 Todd Tucker, 'Inside the Black Box: Collegial Patterns on Investment Tribunals' (2016) 7 JIDS 183.